



EXCLUSIVE AGENCY ADDENDUM TO LISTING

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ADDENDUM TO LISTING AGREEMENT BETWEEN THE UNDERSIGNED PARTIES CONCERNING THE PROPERTY AT

A. Definitions:

- (1) "Owner" means the seller or landlord of the above-referenced Property.
- (2) "Excluded Prospect" means a prospective buyer or tenant who:
 - (a) has direct communication or negotiations with Owner about the purchase or lease of the Property;
 - (b) is procured through Owner's sole efforts; and
 - (c) Owner identifies as an Excluded Prospect as required by Paragraph D.

B. Exclusive Agency: Notwithstanding provisions in the above-referenced listing agreement (the Listing) to the contrary, Owner may sell or lease the Property to an Excluded Prospect if Owner does not use any other real estate broker to market or assist Owner to sell or lease the Property.

C. Broker's Fees: If Owner sells or leases the Property to an Excluded Prospect, Owner will not be obligated to pay the Broker's Fee under Paragraph 5 of the Listing, but Owner will pay Broker, at the time the sale closes or the lease begins, a fee equal to (check all that apply):

- ☐ (1) _____ % of the sales price if Owner sells the Property.
- ☐ (2) _____ % of the gross rent over the term of the lease if Owner leases the Property.
- ☐ (3) _____

D. Naming of Excluded Prospects: In order for a person to qualify as an Excluded Prospect under this Addendum, Owner must provide Broker written notice identifying the Excluded Prospect by name, address, and phone number. If Broker or any other broker shows the Property to a prospective buyer or tenant before Owner provides written notice to Broker that the prospective buyer or tenant is an Excluded Prospect, then the prospective buyer or tenant is not an Excluded Prospect.

E. Offers from Excluded Prospects: Owner will immediately notify Broker of: (1) Owner's receipt of an offer from an Excluded Prospect; (2) Owner's acceptance of an offer from an Excluded Prospect by providing Broker a copy of the contract or lease; (3) the closing of a contract or lease with an Excluded Prospect; and (4) any termination of such a contract that does not close or a lease that does not commence.

F. Effect on Listing upon Sale or Lease to a Named Exclusion: If Owner enters into a contract to sell or lease the Property to an Excluded Prospect, Broker will have no obligation to provide further services to Owner related to the sale or lease of the Property to an Excluded Prospect and Broker may: (1) terminate the Listing by providing written notice to Owner; or (2) continue to list and market the Property through the date the Listing ends for back-up offers.

G. Public Marketing: **Owner** may publicly market the Property **only** by: ☐ signs, ☐ newspaper, ☐ Internet, ☐ _____. (NOTE: If Owner has listed the Property for sale with Broker with box 6A(2) of the Listing checked, and Owner publicly markets the Property for sale, Broker must file the Listing with the Multiple Listing Services (MLS) within one (1) business day.)

Broker's Printed Name _____ License No. _____
☐ _____
Broker's (☐ or Broker's Associate's) Signature _____ Date _____

Broker's Associate's Printed Name, if applicable _____ License No. _____

Owner's Printed Name _____

Owner's Signature _____ Date _____

Owner's Printed Name _____

Owner's Signature _____ Date _____